

approved under August 27, 2024, over two years after the complaint in this action was filed. Thus, the pre- post-August 22 distinction did not become critical under August of 2024, rendering this case more like *Best Buy* and *Cash Call* than it is like *First American Title*.

The document requests, however, are much broader than the special interrogatories. While understandably relevant to the merits of the case, they are far too broad to be justified by the search for a new plaintiff. If a new plaintiff is found, the matter will then be different. This motion is **denied**.

Because plaintiff did not prevail on this motion, **sanctions will not be awarded**. Defendant did not seek sanctions, and in any event, each side's position was substantially justified.

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. DOES 1 THROUGH 10, INCLUSIVE
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT (CONTINUED FROM 09.25.25, 10.30.25, 12.04.25 & 12.11.25)**
FILED BY:

TENTATIVE RULING:

Appearances required (by zoom is sufficient), pending submission of signed agreement.

5. 9:00 AM CASE NUMBER: C23-02821
CASE NAME: LESLEY HOWARD VS. LIBERTY ASSOCIATES GROUP, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**
FILED BY: HOWARD, LESLEY

TENTATIVE RULING:

Plaintiff Lesley Howard moves for preliminary approval of her class action and PAGA settlement with defendant Liberty Associates Group, LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on November 6, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims was filed on February 5, 2024. A Second amended Complaint was filed on August 21, 2025 (pursuant to agreement of the parties) expanding the claims somewhat. It is the operative complaint.

The settlement would create a gross settlement fund of \$1 million. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be \$333,333.33 (one-third of the settlement). Litigation costs would not exceed \$27,500. The settlement administrator's costs would be up to \$24,000. PAGA penalties would be \$100,000, resulting in a payment of \$75,000 to the LWDA and \$25,000 to the aggrieved employees. The net amount paid directly to the class members would be about \$505,166.67. The fund is non-reversionary. Based on the estimated class size of 2,174, the average net payment for each class member is approximately \$232.

The proposed settlement would certify a class of all current and former non-exempt employees